AMENDMENT #3 TO CONTRACT

Between the State of Nevada
Acting By and Through Its

Department of Health and Human Services
Division of Welfare and Supportive Services
1470 College Parkway
Carson City, NV 89706

and

Pondera Solutions, LLC.
(formerly known as Pondera Solutions, Inc.)
80 Blue Ravine Road Suite 250
Folsom, CA 95630

1. AMENDMENTS. For and in consideration of mutual promises and/or their valuable consideration, all provisions of the original contract dated November 10, 2015, Amendment #1, dated August 15, 2016, and Amendment #2, dated December 12, 2017, attached hereto as Exhibit A, remain in full force and effect with the exception of the following:

This amendment incorporates Attachment D: Data Use Agreement.

Current Contract Language:

A. Section 5. **INCORPORATED DOCUMENTS.** The parties agree that this Contract, inclusive of the following attachments, specifically describes the scope of work. This Contract incorporates the following attachments in descending order of constructive precedence:

ATTACHMENT A:	NEGOTIATED ITEMS
ATTACHMENT B:	INSURANCE SCHEDULE
ATTACHMENT C:	SCOPE OF WORK

A Contractor's Attachment shall not contradict or supersede any State specifications, terms or conditions without written evidence of mutual assent to such change appearing in this Contract.

Amended Contract Language:

A. Section 5. **INCORPORATED DOCUMENTS.** The parties agree that this Contract, inclusive of the following attachments, specifically describes the scope of work. This Contract incorporates the following attachments in descending order of constructive precedence:

ATTACHMENT A:	NEGOTIATED ITEMS
ATTACHMENT B:	INSURANCE SCHEDULE
ATTACHMENT C:	SCOPE OF WORK
ATTACHMENT D:	DATA USE AGREEMENT

A Contractor's Attachment shall not contradict or supersede any State specifications, terms or conditions without written evidence of mutual assent to such change appearing in this Contract.

B. ATTACHMENT D: Data Use Agreement, dated July 31, 2018 is hereby incorporated into the contract.

2. INCORPORATED DOCUMENTS. Exhibit A (Original Contract, Amendment #1, and Amendment #2) is attached hereto, incorporated by reference herein and made a part of this amended contract.

3. REQUIRED APPROVAL. This amendment to the original contract shall not become effective until and unless approved by the Nevada State Board of Examiners.

IN WITNESS WHEREOF, the parties hereto have caused this amendment to the original contract to be signed and intend to be legally bound thereby.

8/15/18		PRESIDENT	
Independent Contractor's Signature	Date	Independent Contractor's Title	
8/29/18		Administrator, Division of Welfare and Supportive Services	
Steve H. Fisher	Date	Title	
9/9/18		Director, Department of Health and Human Services	
Richard Whitley	Date	Title	
for Paul Nicks		APPROVED BY BOARD OF EXAMINERS	
Signature – Board of Examiners			
		On: 9/13/18	
		Date	
Approved as to form by:			
		On: 8/23/18	
Deputy Attorney General for Attorney General		Date	

Approved July 8, 2002

Attachment D
July 31, 2018

DATA USE AGREEMENT

This Data Use Agreement ("Agreement") is made by and between State of Nevada, Division of Welfare and Supportive Services ("Customer") and Pondera Solutions, Inc. ("User") pursuant to which Customer agrees to provide User with data that resides in Customer's _____ program systems of record as identified in Section 5 of this Agreement. In exchange, the User agrees to use the data only for purposes that support the project referenced in Section 3 of this Agreement. User agrees to ensure the integrity, security, and confidentiality of the data by complying with the terms of this Agreement and applicable law, including the Privacy Act and the Health Insurance Portability and Accountability Act.

1. This Agreement addresses the conditions under which Customer will disclose and the User will obtain, use, reuse and disclose the Customer dataset(s) specified in Section 5 and/or any derivative dataset(s) that contain direct individual identifiers or elements that can be used in concert with other information to identify individuals. The terms of this Agreement can be changed only by a written modification to this Agreement or by the parties adopting a new agreement. The parties agree further that instructions or interpretations issued to the User concerning this Agreement or the data specified herein, shall not be valid unless issued in writing by Customer.

2. The parties mutually agree that Customer retains all ownership rights to the dataset(s) referred to in Section 5 of this Agreement, and that the User does not obtain any right, title, or interest in any of the data furnished by Customer.

3. The User represents, and in furnishing the dataset(s) specified in Section 5 Customer relies upon such representation, that such dataset(s) will be used solely for the purpose(s) of implementing, maintaining, and operating the Pondera Fraud System for Customer.

4. The User agrees not to disclose, sell, rent, lease, loan, use or reuse, or otherwise grant access to the data covered by this Agreement except as specified in this Agreement or except as Customer shall authorize in writing or as otherwise required by law. The User affirms that the requested data is the minimum necessary to achieve the purposes stated in this Agreement. The User agrees that, within the User organization and the organizations of its agents, access to the data covered by this Agreement shall be limited to the minimum amount of data and minimum number of individuals necessary to achieve the purpose stated in this Agreement (i.e., individual's access to the data will be on a need-to-know basis).

5. The following Customer dataset(s) is/are covered under this Agreement:

Dataset	Description	System of Record
	[Identify numbers of years of historical data, frequency of updates for years going forward]	
TWNPRGM_CASE_DEBT		
TWNDBTR_DTLS		
TWNRESP_PRSN_DBTR		
TWNDEBT_RESP_PRSN		
TWNDEBT		
TWNIR_ALERT		
TWNDRT_PYMT		
TWNDEBT_MATCH_REQ		
TWNRPM_AUDIT_TRAIL		

TWNDBT_CLM_XFER		
TWNDBT_COLN_HSTRY		
TWNDBT_MTHLY_STATS		
TWNDBT_YTD_STATS		
TWNIRDRT_PYMT_SMRY		
TWNIR_ELIG_OVPYMTS		
TWNIPV_CHRGS		
TWNPERSON		
PDCAS01A - PONDERA CASE HISTORY	Build the Pondera Case index and creates the Case History Output file. Case History Output file is comprised of data taken from TWNELIG_VERSION, TWNFAM_CASE_HSTRY, TWNPRGM_CASE_HSTRY, and TWNPERSON. It runs on the first of the month for the prior month's benefit date. Data selected is program case type of 'FS', last posted version indicator is 'Y'es, benefit year and month are for the prior month, with the data from TWNFAM_CASE_HSTRY and TWNPRGM_CASE_HSTRY selected with a period begin date that is less than or equal to the first of the previous month and with an end date equal to or greater than the last of the prior month. The case index database contains the field CS_IDX_EXTR_DT (Case Index Extraction Date) that is used in subsequent PDCAS0xx programs to ensure the data retrieved is for the current run date.	
PDCAS02A - PONDERA CASE ADDRESS	Creates the Person Address History File. Uses the Index table created in PDCAS01 as input to select address data where the address type is Benefits Issuance, Current Residence, Current Mailing, Residential Address, or Mailing address for the ICI of the case being processed. The date on the period begin timestamp of the addresses must be less than or equal to the period end date of the prior month, with the period end date on the address being greater than or equal to the period end date of the prior month.	

PDCAS03A - PONDERA AUTHORIZED REP	Creates the Authorized Rep file. Uses the Index table created in PDCAS01 as input to select the Authorized Representative information for the ICI of the case being processed where the effective from date for the Auth Rep is less than or equal to the first date of the prior month and the effective to date is equal to or greater than the last day of the prior month, and the benefit month and year is the prior month.	
PDCAS04A - PONDERA CASE ALTERNATE PAYEE	Creates the Alternate Payee file. Uses the Index table created in PDCAS01 as input to select the Alternate Payee information for the ICI of the case being processed where the effective from date for the Alternate Payee is less than or equal to the first date of the prior month and the effective to date is equal to or greater than the last day of the prior month, and the benefit month and year is the prior month.	
PDCAS05A - PONDERA CASE ELIGIBILITY	Creates the Case Eligibility file. Uses the Index table created in PDCAS01 as input to retrieve the information for the ICI of the case being processed from TWNELIG_VERSION and TWNPRGM_CASE_HSTRY where the effective from date for the Case Eligibility is less than or equal to the first date of the prior month and the effective to date is equal to or greater than the last day of the prior month, and the benefit month and year is the prior month.	
PDCAS06A - PONDERA CASE BUDGET	Creates the Case Budget file. Uses the Index table created in PDCAS01 as input to retrieve the information for the ICI of the case being processed from TWNELIG_VERSION and TWNPRGM_BDGT_UNIT where the effective from date for the Case Budget is less than or equal to the first date of the prior month and the effective to date is equal to or greater than the last day of the prior month, and the benefit month and year is the prior month.	

PDPER01A - PONDERA PERSON HISTORY	Build the Pondera Person index and creates the Person History Output file. Person History Output file is comprised of data for the ICI of the case being processed taken from TWNELIG_VERSION and TWNELG_VER_MBR. It runs on the first of the month for the prior month's benefit date. Data selected is from the prior benefit month with the Case Index Extraction date equal to the date being run, making use of the Pondera Person Index table to retrieve the data.	
PDPER02A - PONDERA PRSN NCP	Creates the Person NCP (Non Custodial Parent) file. Person NCP file is comprised of data taken from TWNFAM_NCP relating to the non custodial parent(s) for the ICI of the case being processed. It runs on the first of the month for the prior month's benefit date. Data selected is from the prior benefit month with the Case Index Extraction date equal to the date being run, making use of the Pondera Person Index table to retrieve the data.	
PDPER03A - PONDERA PRSN CST (NCP/CST)	Creates the Person CST (Custodial Parent) file. Person CST file is comprised of data taken from TWNFAMCST relating to the custodial parent(s) for the ICI of the case being processed. It runs on the first of the month for the prior month's benefit date. Data selected is from the prior benefit month with the Case Index Extraction date equal to the date being run, making use of the Pondera Person Index table to retrieve the data.	
PDPER04A - PONDERA PRSN CHILD (NCP/CST)	Creates the Person Child file. Person Child file is comprised of data taken from TWNFAM_CHILD relating to the child for the ICI of the case being processed. It runs on the first of the month for the prior month's benefit date. Data selected is from the prior benefit month with the Case Index Extraction date equal to the date being run, making use of the Pondera Person Index table to retrieve the data.	

PDPER05A - PONDERA PRSN GROUP LIVING	Creates the Person Group Living Arrangement file. Person Group Living Arrangement file is comprised of data taken from TWNGRP_LVNG_ARNG relating to the living arrangements for the ICI of the case being processed. It runs on the first of the month for the prior month's benefit date. Data selected is from the prior benefit month with the Case Index Extraction date equal to the date being run, making use of the Pondera Person Index table to retrieve the data.	
PDPER06A - PONDERA PRSN ALIEN	Creates the Person Alien file. Person Alien file is comprised of data taken from TWNALIEN_DTLS relating to immigration and citizenship for the Unique Person Identifiers (UPIs) for ICI of the case being processed. It runs on the first of the month for the prior month's benefit date. Data selected is from the prior benefit month with the Case Index Extraction date equal to the date being run, making use of the Pondera Person Index table to retrieve the data.	
PDPER10A - PONDERA PRSN BANK	Creates the Person Bank file. Person Bank file is comprised of data taken from TWNBANK_ACC_DTLS and TWNFINAN_INST relating to bank account details and the financial institution details for the Unique Person Identifiers (UPIs) for ICI of the case being processed. It runs on the first of the month for the prior month's benefit date. Data selected is from the prior benefit month with the Case Index Extraction date equal to the date being run and the period begin date equal to the prior month's beginning date, making use of the Pondera Person Index table to retrieve the data.	
PDPER11A - PONDERA PRSN JOB	Creates the Person Job details file. Person Job file is comprised of data taken from TWNJOB_INCM_DTLS and TWNEMPLOYER relating to job income details and the employer details for the Unique Person Identifiers (UPIs) for the ICI of the case being processed. Data selected is from the prior benefit month where period begin date the is less than or equal to the first date of the prior month and the period end date is equal to or greater than the first day of the prior month, and the benefit month and year is the prior month.	

PDPER12A - PONDERA PRSN JOB PAY DTLS	Creates the Person Job Pay details file. Person Job Pay file is comprised of data taken from TWNPAY_DTLS and TWNJOB_INCM_DTLS relating to pay details and the employer ID details for the Unique Person Identifiers (UPIs) for the ICI of the case being processed. Data selected is from the prior benefit month where period begin date the is less than or equal to the first date of the prior month and the period end date is equal to or greater than the first day of the prior month, and the benefit month and year is the prior month.	

6. The parties mutually agree that the aforesaid dataset(s), including those datasets that directly identify individuals, and those datasets that can be used in concert with other information to identify individuals, may be retained by the User until the expiration or earlier termination of the contract between Customer and User for the project identified in Section 3 hereinafter known as the "Retention Date." The User agrees to destroy Customer's data and send written certification of the destruction of the data to Customer within 30 days of the Retention Date. The User agrees not to retain Customer data or any parts thereof, after such dataset(s) are destroyed unless the Customer identified authorized individual grants written authorization.

7. The Agreement is coterminous with the contract between Customer and User for the project identified in Section 3 of this Agreement.

8. The User agrees to establish appropriate administrative, technical, and physical safeguards to protect the confidentiality, integrity, and availability of the data and to prevent unauthorized use or access to it. The safeguards shall adhere to all applicable laws, regulations, and industry standards.

9. The User agrees to grant access to the data to the authorized representatives of Customer for the purpose of inspecting to confirm compliance with the terms of this Agreement.

10. The User agrees not to disclose direct findings, listings, or information derived from the dataset(s) specified in Section 5 with or without direct identifiers, if such findings, listings, or information can, by themselves or in combination with other data, be used to deduce an individual's identity.

11. The User agrees that in the event Customer determines or has a reasonable belief that the User has made or may have made a use, reuse or disclosure of the datasets identified in Section 5 that is not authorized by this Agreement or another written authorization from Customer, Customer, at its sole discretion, may require the User to: (a) promptly investigate and report to Customer the User's determinations regarding any alleged or actual unauthorized use, reuse or disclosure, (b) promptly resolve any problems identified by the investigation; (c) if requested by Customer, submit a formal response to an allegation of unauthorized use, reuse or disclosure; (d) if requested by Customer, submit a corrective action plan with steps designed to prevent any future unauthorized uses, reuses or disclosures; and (e) if requested by Customer, return datasets to Customer or destroy the datasets it received from Customer under this Agreement. The User understands that, as a result of Customer's determination or reasonable belief that unauthorized uses, reuses or disclosures have taken place, Customer may refuse to release further Customer data to the User for a period of time to be determined by Customer.

The User agrees to report any breach of personally identifiable information (PII) from the Customer dataset(s), loss of these data or disclosure to any unauthorized persons to Customer within eight (8) hours of discovering the breach and to cooperate fully in the Customer's security incident process. While Customer retains all ownership rights to the dataset(s), as outlined above, the User shall bear the cost and liability for any breaches of PII from the dataset(s) while they are entrusted to the User.

Furthermore, if Customer determines that the risk of harm requires notification of affected individual persons of

the security breach and/or other remedies, the User agrees to carry out these remedies without cost to Customer.

12. The User hereby acknowledges that criminal penalties under §1106(a) of the Social Security Act (42 U.S.C. § 1306(a)), including a fine not exceeding $10,000 or imprisonment not exceeding 5 years, or both, may apply to disclosures of information that are covered by § 1106 and that are not authorized by regulation or by Federal law. The User further acknowledges that criminal penalties under the Privacy Act (5 U.S.C. § 552a(i) (3)) may apply if it is determined that the Requestor or Custodian, or any individual employed or affiliated therewith, knowingly and willfully obtained the data(s) under false pretenses. Any person found to have violated sec. (i)(3) of the Privacy Act shall be guilty of a misdemeanor and fined not more than $5,000. Finally, the User acknowledges that criminal penalties may be imposed under 18 U.S.C. § 641 if it is determined that the User, or any individual employed or affiliated therewith, has taken or converted to his own use dataset(s), or received the dataset(s) knowing that they were stolen or converted. Under such circumstances, they shall be fined under Title 18 or imprisoned not more than 10 years, or both; but if the value of such property does not exceed the sum of $1,000, they shall be fined under Title 18 or imprisoned not more than 1 year, or both.

13. By signing this Agreement, the User agrees to abide by all provisions set out in this Agreement and acknowledges having received notice of potential criminal or administrative penalties for violation of the terms of the Agreement.

14. On behalf of the User the undersigned individual hereby attests that he or she is authorized to legally bind the User to the terms this Agreement and agrees to all the terms specified herein.

Name and Title of User Representative: Greg Loos, President
Company: Pondera Solutions, LLC.
Address: ~~11290 Pyrites Way, Suite 100, Gold River, CA 9567~~
Telephone: (916) 389-7800
Email: gloos@ponderasolutions.com

Pondera Solutions, LLC
80 Blue Ravine Road Suite 250
Folsom, CA 95630

8/15/18

Signature and Date

15. The parties mutually agree that the following named individual is designated as custodian of the dataset(s) on behalf of the User and will be the person responsible for the observance of all conditions of use and for establishment and maintenance of security arrangements as specified in this Agreement to prevent unauthorized use. The User agrees to notify Customer within fifteen (15) days of any change of custodianship. The parties mutually agree that Customer may disapprove the appointment of a custodian or may require the appointment of a new custodian at any time.

The custodian hereby acknowledges his/her appointment as custodian of the aforesaid dataset(s) on behalf of the User, and agrees to comply with all of the provisions of this Agreement on behalf of the User.

Name and Title of User Custodian: Adi Kremer, Information Security Officer
Company: Pondera Solutions, LLC.
Address: 80 Blue Ravine Road, Suite 250, Folsom, CA 95630
Telephone: (916) 389-7800
Email: akremer@ponderasolutions.com

Signature and Date

16. The parties mutually agree that the following named individual will be designated as the "point-of-contact" for the Agreement on behalf of Customer:

Name and Title of Customer point-of-contact:	John Dekoekkoek, MA III	Jesse Stephenson, SSPS III
Address:	1470 College Parkway Carson City, NV 89706	3330 E Flamingo Las Vegas, NV 89121
Telephone	(775) 684-0568	(702) 486-8890
Email:	jdekkoekkoek@dwss.nv.gov	jstephenson@dwss.nv.gov

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Signature and Date

17. On behalf of Customer the undersigned individual hereby attests that he or she is authorized to enter into this Agreement and agrees to all the terms specified herein.

Name and Title of Customer point-of-contact: Steve H. Fisher, Administrator
Customer: Nevada Department of Health and Human Services, Division of Welfare and Supportive Services
Address: 1470 College Parkway, Carson City, NV 89706
Telephone: (775) 684-0500

S. H. F 8/29/18

Signature and Date